

Regulation 503.11-R(1): Disruptive Behavior - Removal Procedures

Status: DRAFT

Original Adopted Date: Pending

Nonviolent Disruption

A nonviolent disruption is defined as a disruption to classroom instruction that results from disorderly conduct, abusive or profane language, bullying as defined by *Iowa Code* 280.28, or repeatedly disruptive behavior. If the disruption is a nonviolent disruption, a teacher may remove the student from the classroom and place the student under the supervision of the principal or the principal's designee for at least 30 minutes. A teacher may appeal to the school board a principal's decision not to remove a student for nonviolent disruptive behavior, as well as a decision to return the student to the classroom too soon.

A student enrolled in kindergarten through grade five cannot be readmitted into the teacher's classroom until the principal or principal designee and the teacher meet to discuss the readmission of the student.

A student enrolled in grades six through twelve cannot be readmitted into the teacher's classroom until the principal or the principal designee and the teacher meet to discuss readmission. Even so, the student is not allowed to be re-admitted to the teacher's classroom until the immediate subsequent school day at the earliest.

Should there be disciplinary action taken against the student, the principal or the principal's designee will inform the teacher of the actions taken as soon as reasonably possible after the student's removal.

Students who have been removed from class will be provided alternative learning arrangements and must make up any work that the student missed while under alternative supervision.

Multiple Nonviolent Disruption Removals

Should a student be removed from a teacher's classroom more than once, the teacher(s) who removed the student, the principal, the guidance counselor, the student's parent/legal guardian (if the student is not an emancipated minor), and the student must participate in a meeting to discuss the student's nonviolent disruptions, establish a behavior plan, and a course of discipline. Considerations may include relocating the student to an alternative learning environment, including a therapeutic classroom when appropriate.

Violent Disruption

A violent disruption is defined as a disruption to classroom instruction that results from a threat of violence or an incident of violence resulting in injury, property damage, or assault as defined in *Iowa Code* 708.1. If the disruption is a violent disruption, the teacher must remove the student from the classroom and place the student under the supervision of the principal or the principal's designee.

A student enrolled in kindergarten through grade five cannot be re-admitted into the teacher's classroom until the principal or principal designee and the teacher meet to discuss the readmission of the student.

A student enrolled in grades six through twelve cannot be readmitted into the teacher's classroom until the principal or the principal designee and the teacher meet to discuss readmission. The student is not allowed to be re-admitted to the teacher's classroom until the immediate subsequent school day at the earliest.

A student cannot be re-admitted to a teacher's classroom if all the following criteria are met:

- The student was removed due to an assault on the teacher, and
- The teacher does not consent to allowing the student to return to the teacher's classroom.

Should there be a determination of disciplinary action, the principal will take the disciplinary action and notify the parent or guardian of the student in writing, and if possible, through electronic notice.

The principal must impose the maximum disciplinary action allowed under district policy when a student's conduct, statements, or other actions:

- are severe or pervasive; and
- result in a request from the teacher for maximum disciplinary consequences.

Multiple Violent Disruption Removals

If a student is removed from a teacher's classroom two or more times in a **semester**, then the principal will discipline the student in any of the following manners:

- Assigning the student to either in-school or out-of-school suspension; or
- Recommend to the superintendent the student be relocated in an alternative learning environment that has been approved by the superintendent.
- Removal and discipline of students with disabilities under any of these categories must comply with the provisions of applicable federal and state law.

NOTE: In-school suspension can at times still be considered a "removal" to trigger the ten cumulative days for manifestation determination reviews.